

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kelly Lyon	Team: Squad #11	CCRB Case #: 202204825	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Thursday, 07/21/2022 7:54 PM, Thursday, 07/21/2022 8:04 PM, Thursday, 07/21/2022 8:07 PM	Location of Incident: Mother Gaston Blvd and New Lots Ave; En route to the 73rd Precinct; 73rd Precinct stationhouse	18 Mo. SOL 1/21/2024	Precinct: 73		
Date/Time CV Reported Fri, 07/22/2022 7:43 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 07/22/2022 7:43 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Jonathan Aquino	15569	957337	075 DET
2. PO Christopher Kalinowski	22920	962515	073 PCT
3. PO Jon DeRise	15542	938331	073 PCT
4. SGT Jessica Martinez	04216	953058	PSA 2

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Allen Rice	09254	944933	SRG 3
2. PO Alfred Lobaito	08420	943494	SRG 05
3. PO Christopher London	24800	955079	073 PCT
4. PO Janise Aiken	13971	954470	073 PCT
5. SGT SA Frantz Chauvet	00864	952575	073 PCT
6. PO Ileana Feliz	25565	950538	SRG 3
7. PO Steven Urchenko	15509	964813	PSA 2
8. PO Cristian Puchuelachauca	27943	972367	073 PCT
9. PO Jesus Martinez	10210	968613	073 PCT
10. DTS Gregory Andre	19779	958249	PSA 2
11. PO Vincent Peralta	31599	955314	PSA 2

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Jon DeRise	Force: In the vicinity of Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Jon DeRise used physical force against § 87(2)(b)	A . Within NYPD Guidelines
B . PO Jon DeRise	Discourtesy: In the vicinity of Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Jon DeRise spoke discourteously to § 87(2)(b)	B . Within NYPD Guidelines
C . PO Jon DeRise	Force: In the vicinity of Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Jon DeRise struck § 87(2)(b) with a baton.	C . Within NYPD Guidelines

Officer(s)	Allegation	Inv. Div. Recommendation
D . PO Christopher Kalinowski	Force: In the vicinity of Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Christopher Kalinowski tightly handcuffed § 87(2)(b)	D . Unable to Determine
E . PO Christopher Kalinowski	Force: In the vicinity of Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Christopher Kalinowski used physical force against § 87(2)(b)	E . Within NYPD Guidelines
F . PO Jonathan Aquino	Force: In the vicinity of Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Jonathan Aquino used physical force against § 87(2)(b)	F . Within NYPD Guidelines
G . PO Jonathan Aquino	Force: In the vicinity of Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Jonathan Aquino used physical force against § 87(2)(b)	G . Within NYPD Guidelines
H . SGT Jessica Martinez	Force: In the vicinity of Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Sergeant Jessica Martinez used physical force against § 87(2)(b)	H . Within NYPD Guidelines
I . SGT Jessica Martinez	Discourtesy: In the vicinity of Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Sergeant Jessica Martinez acted discourteously toward § 87(2)(b)	I . Substantiated
J . PO Christopher Kalinowski	Discourtesy: En route to the 73rd Precinct stationhouse, Police Officer Christopher Kalinowski spoke discourteously to § 87(2)(b)	J . Substantiated
K . PO Christopher Kalinowski	Off. Language: En route to the 73rd Precinct stationhouse, Police Officer Christopher Kalinowski made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	K . Substantiated
L . PO Jonathan Aquino	Force: At the 73rd Precinct stationhouse, Police Officer Jonathan Aquino used physical force against § 87(2)(b)	L . Within NYPD Guidelines
M . PO Jonathan Aquino	Abuse: At the 73rd Precinct stationhouse, Police Officer Jonathan Aquino did not obtain medical treatment for § 87(2)(b)	M . Substantiated
N . PO Christopher Kalinowski	Discourtesy: At the 73rd Precinct stationhouse, Police Officer Christopher Kalinowski spoke discourteously to § 87(2)(b)	N . Substantiated
O . PO Christopher Kalinowski	Off. Language: At the 73rd Precinct stationhouse, Police Officer Christopher Kalinowski made offensive remarks to § 87(2)(b)	O . Substantiated
P . PO Jonathan Aquino	Discourtesy: At the 73rd Precinct stationhouse, Police Officer Jonathan Aquino spoke discourteously to § 87(2)(b)	P . Substantiated

Case Summary

On July 22, 2022, § 87(2)(b) filed this complaint with the CCRB online. § 87(2)(b)

§ 87(2)(b) was identified as an additional victim.

On July 21, 2022, at approximately 7:54 p.m., in the vicinity of Mother Gaston Boulevard and New Lots Avenue in Brooklyn, unidentified officers were following § 87(2)(b) when he fell off his dirt bike, was arrested, and escorted to an ambulance. § 87(2)(b) approached the ambulance to tell § 87(2)(b) she was going to get his mother and PO Jon DeRise of the 73rd Precinct pushed § 87(2)(b) in the chest (**Allegation A: Force, within NYPD guidelines**) and told her to "Get the fuck back" (**Allegation B: Discourtesy, within NYPD guidelines**). PO DeRise pushed § 87(2)(b) further back with a baton (**Allegation C: Force, within NYPD guidelines**).

§ 87(2)(b) was with her three-year-old son, § 87(2)(b) when she threw ice at the crowd, was taken into custody, and allegedly tightly handcuffed by PO Christopher Kalinowski of the 73rd Precinct (**Allegation D: Force, unable to determine**). PO Kalinowski and PO Jonathan Aquino of 73rd Precinct pulled § 87(2)(b) to the police vehicle (**Allegations E and F: Force, within NYPD guidelines**). PO Aquino pushed § 87(2)(b) inside the police vehicle (**Allegation G: Force, within NYPD guidelines**) while Sgt. Jessica Martinez of Police Service Area 2 pulled § 87(2)(b) with the assistance of PO Cristian Puchelachauca of the 73rd Precinct whom she instructed to assist (**Allegation H: Force, within NYPD guidelines**). After getting § 87(2)(b) into the police vehicle, Sgt. Martinez stuck out her tongue and allegedly laughed at § 87(2)(b) (**Allegation I: Discourtesy, substantiated**).

En route to the 73rd Precinct stationhouse, PO Kalinowski told § 87(2)(b) "Sweetheart, put your fucking legs down. You're a fucking lady, act like a lady" (**Allegation J: Discourtesy, substantiated** and **Allegation K: Offensive language, substantiated**).

At the 73rd Precinct stationhouse, PO Aquino pulled § 87(2)(b) into the stationhouse (**Allegation L: Force, within NYPD guidelines**). Once inside, § 87(2)(b) requested medical assistance from PO Aquino, and he did not provide it (**Allegation M: Abuse of Authority, substantiated**). PO Kalinowski stated, "You're acting out, a little too crazy," and "What about all that shit on the ramp," to § 87(2)(b) regarding her behavior (**Allegation N: Discourtesy, substantiated** and **Allegation O: Offensive language, substantiated**). § 87(2)(b) stated, "You're ignorant," to PO Aquino and he responded, "Takes one to know one," (**Allegation P: Discourtesy, substantiated**).

§ 87(2)(b) was issued a summons for disorderly conduct (BR 01) and § 87(2)(b) received an unspecified summons which could not be located (BR 02).

The investigation obtained 16 body-worn camera videos (BR 03 and BR 04: videos, BR 05, BR 06, BR 07, BR 08, BR 09, BR 10, BR 11, and BR 12: summaries).

Findings and Recommendations

Allegation (A) Force: In the vicinity of Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Jon DeRise used physical force against § 87(2)(b)

Allegation (B) Discourtesy: In the vicinity of Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Jon DeRise spoke discourteously to § 87(2)(b)

Allegation (C) Force: In the vicinity of Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Jon DeRise struck § 87(2)(b) with a baton.

It was undisputed that PO DeRise used his baton to push § 87(2)(b) however the manner in which he used his baton was disputed.

§ 87(2)(b) (BR 13) and § 87(2)(b) (BR 14) consistently described hearing from an unknown source that § 87(2)(b) may have been struck off his dirt bike by officers. An ambulance arrived and § 87(2)(b) tried to ask § 87(2)(b) if he wanted her to tell his mother. Officers were attempting to do crowd control around the ambulance. § 87(2)(b) stated (BR 14) she positioned herself approximately 20 to 25 feet away from the ambulance and PO DeRise turned around and screamed in § 87(2)(b) face, "Back up, back the fuck up." § 87(2)(b) told PO DeRise she

had Covid-19 and stated she was not too close. PO DeRise shoved § 87(2)(b) upper body back with both of his hands causing her to stumble backward a couple of feet and she nearly fall. As § 87(2)(b) was catching her balance, PO DeRise took his baton out and lifted it. § 87(2)(b) put her arm up because she thought PO DeRise was going to hit her. PO DeRise placed his baton against § 87(2)(b) neck and pushed her approximately 15 feet toward a police vehicle. The backside of § 87(2)(b) body was up against the vehicle. PO DeRise kept § 87(2)(b) against the vehicle for approximately one minute with the baton on her neck.

§ 87(2)(b) stated (BR 13) that PO DeRise pushed § 87(2)(b) back causing her to nearly fall and began striking her in the chest and arms with his baton approximately five times then handcuffed her.

Although several bystanders accused officers of hitting § 87(2)(b) off the dirt bike, § 87(2)(b) stated (BR 15) that he did not know whether officers tapped his dirt bike while they were following him, he did not remember how he fell, and he could not describe any interaction between § 87(2)(b) and PO DeRise.

PO DeRise's statement (BR 16) was consistent with the body-worn camera footage. PO DeRise's body-worn camera footage (BR 17: *video*, BR 11: *summary*) shows at 5:00 minutes, § 87(2)(b) approaching the ambulance that § 87(2)(b) was just escorted to and PO DeRise telling her to step away from the ambulance. § 87(2)(b) informs PO DeRise that she is telling § 87(2)(b) that she is going to get his mother and PO DeRise continues to tell her to step away. § 87(2)(b) comes to chest to chest with PO DeRise, coughs, and says, "I got Corona." Using two hands, PO DeRise pushes § 87(2)(b) in the chest causing her to move backwards several steps and says, "Get the fuck back." § 87(2)(b) pushes PO DeRise's arms away from her and PO Aquino temporarily holds PO DeRise back. § 87(2)(b) re-approaches and raises her arm and says, "Don't fucking push me." At 5:19 minutes, PO DeRise takes out his baton, holds it horizontally with two hands, and uses it to push § 87(2)(b) in the upper chest causing her to move backward approximately 10 feet and says, "You fucking hit me." PO DeRise makes no further contact with § 87(2)(b) is handcuffed by other officers and escorted away.

PO Aquino's body-worn camera footage (BR 18: *video*, BR 08: *summary*) shows at 1:55 minutes, § 87(2)(b) approaching the ambulance. At 2:03 minutes, after PO DeRise pushes § 87(2)(b) the first time, § 87(2)(b) appears to hit or attempt to hit PO DeRise with her right hand while holding her phone however the camera does not capture exactly where her hand lands on the front of PO DeRise's body.

PO DeRise explained (BR 16) that § 87(2)(b) needed to get away from the ambulance because eventually the ambulance would need to drive away, and Emergency Medical Services (EMS) needed a safe environment to do their job. After PO DeRise pushed § 87(2)(b) the first time, she pushed his arm, so he took out his expandable baton and pushed § 87(2)(b) back in a manner taught to him in the Police Academy holding the baton with hands parallel to one another with one on each end and by pushing § 87(2)(b) in the upper chest and nowhere else on her body. PO DeRise did not pull the baton back and strike or hit § 87(2)(b) PO DeRise further added that he used his baton to push § 87(2)(b) back to create distance between him and her, to keep EMS safe, and to lessen the issue of crowd control.

NYPD Patrol Guide procedure 221-01 (BR 19) states that any application of force must be reasonable under the circumstance and the following should be considered in determining whether it is reasonable: The nature and severity of the crime/circumstance, actions taken by the subject, duration of the action, immediacy of perceived threat or harm to the subject, MOS, or bystanders, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, number of subjects in comparison to number of MOS, size, age, and condition of subject compared to that of the MOS, subject's violent history, presence of hostile crowd or agitators, and whether the subject is apparently under the influence of stimulants/narcotics.

In DAO-DCT Case Number 79627/04 (BR 20), the tribunal found that when an officer uses an otherwise impolite word during a stressful street encounter where that officer is attempting to

maintain control of the situation, a verbal slip does not rise to the level of actionable misconduct.

§ 87(2)(g) the body-worn camera footage shows that § 87(2)(b) responded to initial instructions to step back by getting close to and coughing toward PO DeRise while telling him that she had the Covid-19 virus § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation A** be closed as *within NYPD guidelines*.

§ 87(2)(g) § 87(2)(b) re-approached PO DeRise after he initially pushed her away and appeared to hit him with her right hand. § 87(2)(g)

§ 87(2)(g) It is therefore, recommended that **Allegation C** be closed as *within NYPD guidelines*.

§ 87(2)(g) it is recommended that **Allegation B** be closed as *within NYPD guidelines*.

Allegation (D) Force: In the vicinity of Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Christopher Kalinowski tightly handcuffed § 87(2)(b)

Allegation (E) Force: In the vicinity of Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Christopher Kalinowski used physical force against § 87(2)(b)

Allegation (F) Force: In the vicinity of Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Jonathan Aquino used physical force against § 87(2)(b)

Allegation (G) Force: In the vicinity of Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Jonathan Aquino used physical force against § 87(2)(b)

Allegation (H) Force: In the vicinity of Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Sergeant Jessica Martinez used physical force against § 87(2)(b)

§ 87(2)(b) (BR 13) wanted to distract the officers from the situation and threw ice cubes and water toward the crowd two times from her drinking cup. § 87(2)(b) was not sure whether the ice cubes or water hit anyone. § 87(2)(b) was approached by PO Kalinowski and PO Aquino, and two additional officers. PO Kalinowski and PO Aquino handcuffed § 87(2)(b) was handcuffed tightly which caused bruising to her wrists.

PO Kalinowski and PO Aquino pulled § 87(2)(b) away from her three-year-old son toward the marked police vehicle. § 87(2)(b) was panicking and went into “self-defense mode” which made it seem like she was resisting but she did not elaborate on what she was doing. § 87(2)(b) was trying to stay with her son as the officers were pulling her away. § 87(2)(b) tried to give other civilians instructions on what to do with her son but was unable to because she was quickly brought into the right side of the police vehicle. The officers were fighting to get § 87(2)(b) into the vehicle which cause her to hurt her feet and hands. Sgt. Martinez and PO Puchelachauca pulled on § 87(2)(b) from the left side of the vehicle. It took 10 seconds to get § 87(2)(b) into the vehicle.

§ 87(2)(b) provided a photograph (BR 21) of her wrist which depicted possible redness. The photograph showed no observable signs of any swelling, lacerations, or bruising.

PO Aquino’s body-worn camera footage (BR 18: video, BR 08: summary) shows at 5:20 minutes, PO Kalinowski and PO Aquino approaching § 87(2)(b) who is holding a cup of ice water while standing in a crowd of people and officers. PO Kalinowski handcuffs § 87(2)(b) and PO Aquino assists by holding her arm. Neither PO Aquino’s nor PO Kalinowski’s body-worn camera footage clearly depict how tightly the PO Kalinowski placed the handcuffs.

PO Kalinowski explained (BR 22) that he observed § 87(2)(b) throw multiple ice cubes at the crowd and officers and decided to handcuff § 87(2)(b) with PO Aquino’s assistance. PO

Kalinowski did not remember § 87(2)(b) complaining that the handcuffs were too tight. There was a large crowd gathered so PO Kalinowski was focused on getting out of the crowd safely.

PO Aquino (BR 23) stated no one re-tightened § 87(2)(b) handcuffs, however, because § 87(2)(b) was struggling, they could not be double locked.

PO Aquino's body-worn camera footage (BR 18: video, BR 08: summary) shows at 5:50 minutes, PO Kalinowski and PO Aquino beginning to escort § 87(2)(b) to the police vehicle. § 87(2)(b) is trying to turn around and mentions that her child is there. At 6:40 minutes, § 87(2)(b) states her ankle hurts and accuses the officers of dragging her. PO Kalinowski and PO Aquino bring § 87(2)(b) to the outside of the rear passenger side of a police vehicle.

PO Kalinowski explained (BR 22) that § 87(2)(b) did not cooperate and walked in a different direction from the officers and tensed up. PO Kalinowski did not recall pulling § 87(2)(b) and stated that he held onto her to overcome her walking in a different direction. PO Aquino (BR 23) stated § 87(2)(b) tried to plant her feet to prevent herself from walking so he and PO Kalinowski did have to pull her to get to the police vehicle.

PO Aquino's body-worn camera footage (BR 18: video, BR 08: summary) shows from 7:30 minutes to 8:15 minutes, PO Aquino instructing § 87(2)(b) to have a seat in the police vehicle. A large crowd is gathered around the police vehicle. § 87(2)(b) does not move and complains that her hand is bleeding. PO Aquino attempts to move § 87(2)(b) into the vehicle, and she takes a seat on the floor in the doorframe of the vehicle. PO Puchelachauca enters the vehicle from the rear driver's side to pull § 87(2)(b) into the vehicle. PO Aquino attempts to push § 87(2)(b) into the vehicle by the chest and by placing her legs inside. § 87(2)(b) continues resisting by spreading her legs and sticking them out the door of the vehicle. PO Aquino places § 87(2)(b) leg inside the vehicle and quickly closes the door.

Sgt. Martinez' statement (BR 24) was consistent with her body-worn camera footage (BR 25: video, BR 12: summary) which shows at 1:20 minutes, Sgt. Martinez approaching the rear driver's side of the vehicle and instructing PO Puchelachauca to pull § 87(2)(b) inside by the handcuffs. At 1:47 minutes, Sgt. Martinez pulls § 87(2)(b) left arm, and she turns around and spits at Sgt. Martinez. At 1:56 minutes, § 87(2)(b) attempts to spit again and the door is closed.

NYPD Patrol Guide procedure 221-01 (BR 19) states that any application of force must be reasonable under the circumstance and the following should be considered in determining whether it is reasonable: The nature and severity of the crime/circumstance, actions taken by the subject, duration of the action, immediacy of perceived threat or harm to the subject, MOS, or bystanders, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, number of subjects in comparison to number of MOS, size, age, and condition of subject compared to that of the MOS, subject's violent history, presence of hostile crowd or agitators, and whether the subject is apparently under the influence of stimulants/narcotics.

§ 87(2)(g) body-camera footage did not clearly depict the placement of the handcuffs when PO Kalinowski first put them on § 87(2)(b) and she subsequently moved her body while turning away from the officers and while resisting getting into the police vehicle. § 87(2)(g)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that **Allegation D** be closed as *unable to determine*.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) body-worn camera footage was consistent and shows that § 87(2)(b) was turning away while PO Kalinowski and PO Aquino were attempting to escort her to the police vehicle and there was a presence of a hostile crowd, § 87(2)(g)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that **Allegations E, F, G, and H** be closed as *within NYPD*

guidelines.

Allegation (I) Discourtesy: In the vicinity of Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Sergeant Jessica Martinez acted discourteously toward § 87(2)(b)

§ 87(2)(b) stated (BR 13) that once the officers got her inside the police vehicle, Sgt. Martinez laughed at her and stuck out her tongue.

Sgt. Martinez (BR 24) did not recall laughing at § 87(2)(b) or sticking out her tongue. PO Aquino's body-worn camera footage (BR 18: *video*, BR 08: *summary*) shows at 8:16 minutes, Sgt. Martinez on the opposite side of the police vehicle. Sgt. Martinez can be seen through the window. At 8:23 minutes, Sgt. Martinez opens her mouth with her tongue out, leans slightly in § 87(2)(b) direction, and closes the door to the police vehicle. The footage was displayed during Sgt. Martinez's CCRB interview (BR 24), and she acknowledged that it did look like she stuck out her tongue. Sgt. Martinez did not independently recollect displaying her tongue to § 87(2)(b) and did not know why she did that but did not believe she did so to intentionally mock § 87(2)(b). Sgt. Martinez' body-worn camera footage (BR 25: *video*, BR 12: *summary*) did not capture any laughter.

§ 87(2)(g) body-worn camera footage captured Sgt. Martinez' tongue come out of her mouth toward § 87(2)(b) indicating that she was displaying her tongue to § 87(2)(b) § 87(2)(g)

§ 87(2)(b) it is recommended that Allegation I be *substantiated*.

Allegation (J) Discourtesy: En route to the 73rd Precinct stationhouse, Police Officer Christopher Kalinowski spoke discourteously to § 87(2)(b)

Allegation (K) Offensive Language: En route to the 73rd Precinct stationhouse, Police Officer Christopher Kalinowski made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

§ 87(2)(b) (BR 13) did not allege any offensive or discourteous language used by PO Kalinowski in the police vehicle en route to the 73rd Precinct stationhouse, however, it was captured on body-worn camera footage.

PO Kalinowski's body-worn camera footage (BR 26: *video*, BR 07: *summary*) shows at 13:15 minutes, PO Kalinowski in the back of the police vehicle with § 87(2)(b) and she says, "Do you want to see my pussy." PO Kalinowski says, "Sweetheart, put your fucking legs down." § 87(2)(b) puts her foot in PO Kalinowski's face, and he says, "Put your fucking legs down. You're a fucking lady, act like a lady." PO Kalinowski explained (BR 22) that he used the word "sweetheart" because he was trying to be nice. PO Kalinowski used the word "fuck" because he was reiterating what § 87(2)(b) had said to him. PO Kalinowski explained that it was a stressful situation, and he was uncomfortable because it was strange and unusual behavior. PO Kalinowski said, "You're a fucking lady, act like a lady," because it was a saying to mean "try to be decent," he was not trying to be funny or weird and just wanted her to act civil.

NYPD Administrative Guide procedure 304-06 (BR 27) prohibits officers from using discourteous or disrespectful remarks regarding gender.

NYPD Patrol Guide procedure 200-02 (BR 28) states that officers are to respect the dignity of each individual and render services with courtesy and civility.

In DAO-DCT Case Number: 2018-18951 (BR 29), the tribunal found that even with good intentions, the officer was responsible to act with decorum in their interactions with the public, and gratuitous use of inappropriate language was unprofessional. There are certain situations where profane remarks made during a stressful or chaotic situation would not constitute misconduct.

§ 87(2)(g) body-worn camera footage shows that PO Kalinowski called § 87(2)(b) "sweetheart," told her to act like a "fucking lady," § 87(2)(g) it is recommended that Allegations J and K be *substantiated*.

Allegation (L) Force: At the 73rd Precinct stationhouse, Police Officer Jonathan Aquino used physical force against § 87(2)(b)

At the 73rd Precinct stationhouse, § 87(2)(b) (BR 13) refused to exit the police vehicle because no one read her rights nor told her why she was arrested and because her handcuffs were too tight. The officers instructed § 87(2)(b) to get out of the vehicle and she refused. PO Aquino and PO Kalinowski pulled her out of the vehicle and dragged her to the stationhouse. § 87(2)(b) would not walk inside so PO Aquino pushed her inside.

PO Aquino's body-worn camera (BR 18: video, BR 08: summary) shows at 12:30 minutes, PO Aquino asking § 87(2)(b) several times to step out of the vehicle before she complies. PO Aquino escorts § 87(2)(b) to the stationhouse and at 12:54 minutes attempts to break his grasp on her arm. PO Aquino then holds § 87(2)(b) forearms together behind her back. At 13:00 minutes, § 87(2)(b) bends over at the waist directly in front of PO Aquino, then bends over in front of him, shakes her buttocks, and says, "Oh, he's fucking me." PO Aquino turns § 87(2)(b) around behind him and escorts her inside. PO Kalinowski did not assist in bringing § 87(2)(b) into the stationhouse. PO Aquino stated (BR 23) he spun § 87(2)(b) around and pulled her inside the stationhouse so she could not thrust herself toward him again.

NYPD Patrol Guide procedure 221-01 (BR 19) states that any application of force must be reasonable under the circumstance and the following should be considered in determining whether it is reasonable: The nature and severity of the crime/circumstance, actions taken by the subject, duration of the action, immediacy of perceived threat or harm to the subject, MOS, or bystanders, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, number of subjects in comparison to number of MOS, size, age, and condition of subject compared to that of the MOS, subject's violent history, presence of hostile crowd or agitators, and whether the subject is apparently under the influence of stimulants/narcotics.

§ 87(2)(g) body-worn camera footage consistently demonstrated that § 87(2)(b) was resisting going into the stationhouse, was in custody, and making inappropriate movements with her body toward PO Aquino § 87(2)(g). It is recommended that Allegation L be closed as *within NYPD guidelines*.

Allegation (M) Abuse of Authority: At the 73rd Precinct stationhouse, Police Officer Jonathan Aquino did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) (BR 13) did not specifically allege that she was refused medical treatment, only that she told the officers her wrist was possibly broken, and the officers did not care. However, § 87(2)(b) is depicted asking PO Aquino for medical treatment and complaining of injury to her wrist and hand on body-worn camera.

PO Aquino's body-worn camera (BR 18: video, BR 08: summary) shows at 7:17 minutes § 87(2)(b) is standing handcuffed beside the police vehicle saying her hand is bleeding. At 8:45 minutes, § 87(2)(b) says, "My hand is broken, take me to § 87(2)(b) PO Aquino drives § 87(2)(b) to the stationhouse. At 13:42 minutes, § 87(2)(b) states she needs medical attention. At 14:40 minutes, § 87(2)(b) begins screaming repeatedly that she cannot feel her wrist.

PO Aquino explained (BR 23) he did not offer medical attention because he did not see any reason to do so. PO Aquino did not ask § 87(2)(b) why she needed medical attention because she would not stop screaming. PO Aquino could tell that § 87(2)(b) hand was not broken from touching her hand when dealing with the handcuffs. § 87(2)(b) was not offered medical attention by anyone else to PO Aquino's knowledge.

NYPD Patrol Guide procedure 210-04 (BR 30) states that when a prisoner in custody requires medical treatment officers are to request an ambulance and remove prisoner to hospital

directly from place of arrest, if necessary.

§ 87(2)(g) § 87(2)(b) was in police custody and body-worn camera footage shows that she requested medical treatment from PO Aquino, made numerous complaints about her wrist and hand, and PO Aquino disregarded her request § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation M** be *substantiated*.

Allegation (N) Discourtesy: At the 73rd Precinct stationhouse, Police Officer Christopher Kalinowski spoke discourteously to § 87(2)(b)

Allegation (O) Offensive Language: At the 73rd Precinct stationhouse, Police Officer Christopher Kalinowski made offensive remarks to § 87(2)(b)

Allegation (P) Discourtesy: At the 73rd Precinct stationhouse, Police Officer Jonathan Aquino spoke discourteously to § 87(2)(b)

§ 87(2)(b) (BR 13) did not allege any discourteous remarks made by PO Kalinowski or PO Aquino at the 73rd Precinct stationhouse, however, it was captured on body-worn camera footage.

PO Aquino's body-worn camera (BR 18: video, BR 08: summary) shows at 15:39 minutes, PO Kalinowski telling § 87(2)(b) "You're acting out, a little too crazy." At 17:25 minutes, § 87(2)(b) says, "Respect my space like I respect yours." PO Kalinowski says, "What about all that shit on the ramp." PO Kalinowski explained (BR 22) that the word "crazy" came to mind to describe § 87(2)(b) actions from the time he encountered her until that moment in the stationhouse because they were unusual. PO Kalinowski did not use the word crazy to mean deranged, he used it to mean odd. PO Kalinowski explained that he used the word "shit" to just describe the action she had done earlier on the ramp toward PO Aquino.

At 24:25 minutes (BR 18: video, BR 08: summary), in the cell area § 87(2)(b) says, "I'm not going to ask you, you're ignorant," to PO Aquino and he responds, "Takes one to know one, I guess." PO Aquino explained (BR 23) that he said that to get § 87(2)(b) to stop talking because she had screamed at him for two minutes prior to making that comment. § 87(2)(b) was screaming about PO Aquino holding onto her.

NYPD Administrative Guide procedure 304-06 (BR 27) prohibits officers from using discourteous or disrespectful remarks regarding disability.

NYPD Patrol Guide procedure 200-02 (BR 28) states that officers are to maintain a higher standard of integrity than is generally expected of others, respect the dignity of each individual, and render services with courtesy and civility.

In DAO-DCT Case Number: 2018-18951 (BR 29), the tribunal found that even with good intentions, the officer was responsible to act with decorum in their interactions with the public and gratuitous use of inappropriate language was unprofessional. There are certain situations where profane remarks made during a stressful or chaotic situation would not constitute misconduct.

§ 87(2)(g) body-worn camera footage shows that PO Kalinowski used the words "crazy" and "shit" to describe § 87(2)(b) behavior. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegations N and O** be *substantiated*.

§ 87(2)(g) body-worn camera footage shows that PO Aquino responded to § 87(2)(b) comment "you're ignorant," with "takes one to know one," § 87(2)(g) It is therefore recommended that **Allegation P** be *substantiated*.

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED]
[REDACTED]
[REDACTED]
- PO DeRise has been a member of service for 18 years and named a subject in 17 additional CCRB complaints and 37 allegations, eight of which were substantiated.
 - 201204122 involved one substantiated allegation of a discourteous word. The Board recommended Command Discipline and the NYPD imposed no penalty.
 - 201410499 involved one substantiated allegation of refusal to process civilian complaint. The Board recommended Command Discipline B and the NYPD imposed Command Discipline A.
 - 201607619 involved substantiated allegations of threat of arrest, threat of force, and discourteous words. The Board recommended Command Discipline B and there was no available information on any NYPD penalty.
 - 202002691 involved substantiated allegations of physical force and a discourtesy. The Board recommended Charges and the NYPD has yet to impose discipline.
- PO Kalinowski has been a member of service for six years and named a subject in five additional CCRB complaints and 17 allegations, seven of which were substantiated.
 - 202000485 involved substantiated allegations of physical force, discourteous action, and discourteous words. The Board recommended Charges and the NYPD has yet to impose discipline.
 - 202001034 involved a substantiated allegation of a discourteous word. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.
 - 202107337 involved substantiated allegations of frisk and vehicle search. The Board recommended Command Discipline B and the NYPD has yet to impose discipline.
- PO Aquino has been a member of service for eight years and named a subject in seven additional CCRB complaints and 15 allegations, one of which was substantiated.
 - 202107337 involved a substantiated allegation of a frisk. The Board recommended Command Discipline A and the NYPD has yet to impose discipline.
- Sgt. Martinez has been a member of service for 11 years and this is the first CCRB complaint to which she has been named a subject.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) [REDACTED] accepted mediation, however, § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of May 11, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (BR 33).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 11

Investigator:	<u>Kelly Lyon</u>	<u>Inv. Kelly Lyon</u>	<u>10/12/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Edwin Pena</u>	<u>IM Edwin Pena</u>	<u>10/12/23</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date